Syllabus.

GROSJEAN, SUPERVISOR OF PUBLIC ACCOUNTS OF LOUISIANA, *v.* AMERICAN PRESS CO., INC., ET AL.

APPEAL FROM THE DISTRICT COURT OF THE UNITED STATES FOR THE EASTERN DISTRICT OF LOUISIANA.

No. 303. Argued January 14, 1936.—Decided February 10, 1936.

1. As respects the amount in controversy, the District Court has jurisdiction of a suit where the requisite value is involved as to each of several plaintiffs though not involved as to others. P. 241.
2. A motion to dismiss the whole case because the amount in controversy as to some of the plaintiffs is too small, should be overruled. *Id.*
3. There is equitable jurisdiction to enjoin collection of an allegedly unconstitutional state tax, where the taxpayer, if he pays, is afforded no clear remedy of restitution. P. 242.
4. Liberty of the press is a fundamental right protected against state aggression by the due process clause of the Fourteenth Amendment. P. 242.
5. The fact that, as regards the Federal Government, the protection of this right is not left to the due process clause of the Fifth Amendment but is guaranteed *in specie* by the First Amendment, is not a sufficient reason for excluding it from the due process clause of the Fourteenth Amendment. P. 243.
6. A corporation is a "person" within the meaning of the due process and equal protection clauses of the Fourteenth Amendment. P. 244.
7. A State license tax (La. Act No. 23, July 12, 1934) imposed on the owners of newspapers for the privilege of selling or charging for the advertising therein, and measured by a percent. of the gross receipts from such advertisements, but applicable only to newspapers enjoying a circulation of more than 20,000 copies per week, *held* unconstitutional. P. 244.
8. From the history of the subject it is plain that the English rule restricting freedom of the press to immunity from censorship before publication was not accepted by the American Colonists, and that the First Amendment was aimed at any form of previous restraint upon printed publications or their circulation, including restraint by taxation of newspapers and their advertising, which were well-known and odious methods still used in England when the First Amendment was adopted. P. 245.